FIRST ADDENDUM TO THE SOLAR SERVICES AGREEMENT

between

NVI ENERGY (KENYA) LIMITED

and

ORYX LTD

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PARTIES

The Parties to this Addendum are:

(1) NVI Energy (Kenya) Limited; and

(2) Oryx Limited.

IT IS AGREED AS FOLLOWS

1. **DEFINITIONS AND INTERPRETATION**

1.1. In this Addendum unless the context dictates otherwise, the words and expressions set forth below shall bear the following meanings and cognate expressions shall bear corresponding meanings:

1.1.1. **Addendum** means this first addendum to the Solar Services Agreement;

1.1.2. **Annexures** means all annexures attached to and forming part of the Solar Service Agreement, as amended and supplemented from time to time, including but not limited to –

1.1.2.1. Annexure A - Specifications;

1.1.2.2. Annexure B – Site & Lease Area Layout;

1.1.2.3. Annexure C – Design Drawings;

1.1.2.4. Annexure D – Expected Energy Output and Energy Storage;

1.1.2.5. Annexure E – Payments;

1.1.2.6. Annexure F – Early Termination Fee;

1.1.2.7. Annexure G – Form of Parent Guarantee;

1.1.2.8. Annexure H – Customer Enabling Works; and

1.1.2.9. Annexure I – Form of Consent.

1.1.3. **Customer** means Oryx Limited, a limited liability company incorporated in the Republic of Kenya bearing Registration Number C.76792;

1.1.4. **Developer** means NVI Energy (Kenya) Limited, a limited liability company incorporated in the Republic of Kenya bearing Registration Number CPR/2013/100334;

1.1.5. **Parties** means the Customer and the Developer, including their respective successors in title and permitted assigns and "**Party**" shall bear a corresponding meaning;

1.1.6. **Signature Date** means the date of signature of this Addendum by the Party last signing;

1.1.7. **Solar Services** means providing the use and benefit of the Facilities and the provision of operation and maintenance services in respect to the Facilities, to generate Energy Output for own consumption.

1.1.8. **Solar Services Agreement** means the agreement headed '*Solar Services Agreement*' concluded between the Customer and the Developer dated 3 November 2015 in terms of which, *inter alia*, the Developer agreed to install, own, operate and maintain the Facilities and provide Solar Services to the Customer on an operating lease basis on the terms and conditions set out therein, and for the avoidance of doubt, which agreement incorporates Part 1 to Part 2 (as defined therein) and the Annexures.

1.2. Solar Services Agreement

1.2.1. Terms used (but not otherwise defined) in this Addendum have the meanings given to them in the Solar Services Agreement.

1.2.2. This Addendum and the rights and obligations of the Parties hereunder shall in all respects be subject to, and governed by, the terms and conditions contained in the Solar Services Agreement, which will apply *mutatis mutandis* to this Addendum and which shall be incorporated by reference herein. In the event of any conflict between the provisions of this Addendum and the Solar Services Agreement, the provisions of this Addendum shall prevail.

2. INTRODUCTION

2.1. The Developer and the Customer concluded the Solar Services Agreement.

2.2. Due to failure of the existing Energy Storage the Customer expressed an interest for the Developer to upgrade and/or extend the existing Energy Storage and the provision of Solar Services.

2.3. The Parties have agreed to conclude this Addendum to make provision for, and to incorporate into the Solar Services Agreement, *inter alia*, the upgrade the of Energy Storage.

3. THE AMENDMENTS TO THE SOLAR SERVICES AGREEMENT

With effect from the Signature Date, and notwithstanding anything to the contrary contained in the Solar Services Agreement, the Solar Services Agreement shall be amended as follows:

Part 1 Section 1: General Conditions:

3.1. clause 1.36 is amended to read as follows –

3.1.1. 1.36 "**Facility" or "Facilities"** means a solar electric power generation system including equipment, solar panels, support structure, protection, inverters, controls, meters, Energy Storage, switches, connections, conduit, wires and all related equipment installed as a removable, temporary fixture at the Site. The Facilities include all support structures and panelling erected for the purpose of fixing panels, inverters, and other equipment to be included in the Special Conditions.

Part 2 Section 2: Special Conditions:

3.2. clause 2.1 is amended to read as follows –

Accommodation & Lodging: Installation	Customer must provide basic lodging and accommodation for the installation team at the Site for an installation team of 8 persons.
Utilities Access	Customer must provide access points marked at the Lease Area supplying supplementary electricity and water points (Marked in Annexure "B"). The cost of water and electricity used at the Site during construction will be borne by Customer.
Accommodation & Lodging: Maintenance	The Customer is required to provide accommodation and lodging for Developers employees, agents, contractors and sub-contractors performing periodic visits to the Site for the purpose of preventative maintenance.
Basic Maintenance Procedures	Basic Maintenance Procedures: Basic (non-technical) maintenance shall be undertaken by the Customer, in accordance with the maintenance document provided by Developer and in accordance with manufacturer's specifications and applicable law, in a manner so as not to impair the manufacturer warranty. The maintenance document shall be part of the procedural documents provided. Customer shall be responsible for providing necessary staff and utilities to perform: (1) Routine visual inspection of major equipment, (2) panel cleaning and maintenance of site vegetation.
Customer Obtained Approvals	Customer must obtain the following Approvals: TBC

Annexures: Part 3:

3.3. The Parties hereby acknowledge and agree that –

3.3.1. due to the Extended Facilities and the provisions of this Addendum, the Annexures will need to be amended and/or supplemented to accommodate the Extended Facilities; and

3.3.2. due to the nature of the Solar Services Agreement and the provisions of the Extended Facilities, the Developer may not be in a position as at the Signature Date to amend and/or supplement the Annexures in full.

3.4. For the purposes of the Extended Facilities and the provisions of this Addendum, the Developer hereby undertakes, within 90 (ninety) days of the Signature Date or such longer period as may be agreed upon by the Parties to –

3.4.1. amend and/or revise the Annexures and substitute the existing Annexures with such revised Annexures; and

3.4.2. notify the Customer in writing of the Annexures which have been amended and/or supplement and furnish the Customer with copies thereof.

3.5. Without derogating from the provisions of clause 3.4, the Annexures may be amended, supplemented or revised from time to time throughout the Term of the Contract provided the Parties have agreed thereto in writing.

3.6. For the avoidance of doubt, the amended and/or supplemented Annexures shall form an integral part of the Solar Services Agreement and shall be read together with the Solar Services Agreement and construed as one document.

4. REMAINING PROVISIONS

4.1. The Solar Services Agreement shall be deemed to have been amended to the extent set out in this Addendum with effect from the Signature Date.

4.2. Save as set out in this Addendum, the remaining provisions of the Solar Services Agreement shall remain unchanged and shall be of full force and effect.

5. NOTICES AND INTERPRETATION

The provisions of clauses 1, 2, 5, 6 to 8 (both inclusive) of Part 1 (*Contracting* Agreement) of the Solar Services Agreement shall apply equally to this Addendum, as if specifically set out herein, save for changes required by the context.

6. GENERAL AND MISCELLANEOUS

6.1. Sole Record of Addendum

This Addendum constitutes the sole record of the agreement between the Parties with regard to the subject matter hereof. No Party shall be bound by any express or implied term, representation, warranty, promise or the like not recorded herein.

6.2. No Amendments Except In Writing

No addition to, variation of, or agreed cancellation of, this Addendum shall be of any force or effect unless in writing and signed by or on behalf of the Parties.

6.3. Survival of Obligations

Any provision of this Addendum which contemplates performance or observance subsequent to any termination or expiration of this Addendum shall survive any termination or expiration of this Addendum and continue in full force and effect.

6.4. Counterparts

This Addendum may be executed in several counterparts, each of which when read together, shall constitute one and the same document.

6.5. Severability

Should any of the terms, conditions or provisions of this Addendum be determined to be invalid, unlawful or unenforceable to any extent, such term, condition or provision shall be severed from the remaining terms, conditions or provisions of this Addendum which shall continue to be valid to the full extent permitted by law.

SIGNED at Cape Town on this the 16 day of October ~~2016~~ 2018.

For and on behalf of
NVI Energy (Kenya) Limited

Signatory: **Charl Alheit**
Capacity: **Authorised signatory**
Who warrants his authority hereto

SIGNED at Lorsaba on this the 16 day of October ~~2016~~ 2018.

For and on behalf of
Oryx Limited

Signatory:
Capacity:
Who warrants his authority hereto

Oryx Limited
16 OCT 2018
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